

Terms and Conditions

1. Purpose

1.1 These Terms and Conditions (the “**Terms**”) and accompanying Privacy Policy govern your use of the Embody Network software and participation in related incentive programmes for orchestrators (collectively, the “**Services**”). These Terms form a binding agreement between you and the provider of the Services (the “**Organiser**”).

1.2 The Organiser sponsors an incentives programme for network orchestrators (the “**Programme**”) to encourage operation of nodes supporting the Embody Network and Livepeer ecosystem. Participants in the Programme receive incentives for running the software on their own infrastructure.

2. Acceptance of Terms

2.1 Participation in the Programme requires acceptance of the Terms.

2.2 Orchestrators must confirm their acceptance before they are eligible to receive any incentives or operate under the Programme. By installing the software and beginning to receive paid work through the Services, orchestrators automatically agree to these Terms and to the practices described in the Privacy Policy.

2.3 The Organiser may amend these Terms from time to time. Any amended Terms will be communicated to orchestrators through the repository, website, or other official channels.

2.4 Updated Terms shall only take effect once orchestrators have confirmed their acceptance.

3. Software License

3.1 The software released under the Programme is made available under the MIT open-source license. Participants may use, copy, modify and distribute the software for business and personal purposes, subject to the conditions of that license.

3.2 The software is provided “as is,” without warranties or guarantees of any kind. The Organiser makes no representations or warranties regarding performance, reliability, fitness for a particular purpose or compliance with legal requirement. As a result, the Organiser shall not be liable for any relevant claim, damages or other liability.

3.3 By using the Services you grant the Organiser a worldwide, royalty free, irrevocable licence to use, reproduce, modify and display any suggestions, feedback or other content you submit in relation to the Services, for any purpose and without compensation.

4. Eligibility

4.1 You must be at least 18 years old to use the Services. If you are under this age, you must have a parent or legal guardian's permission to participate. The Programme is not directed at children.

4.2 If you are accessing the Services on behalf of an organisation, you represent that you have authority to bind that organisation to these Terms.

5. Disclaimers

5.1 Participation in the Programme is at your own risk. The Organiser makes no guarantees regarding incentives, performance, reliability, compliance with regulatory requirements or the availability of the Programme.

5.2 Your use of the Services is at your sole risk. The Organiser disclaims any and all warranties, express or implied. Nothing in these Terms shall exclude or restrict any rights you may have under mandatory law

6. Prohibited Activities

6.1 Participants agree not to use any software, tools, or materials in the Programme without a valid license. They shall not decompile, reverse engineer, or otherwise tamper with closed or proprietary elements of the Programme, nor shall they engage in activities that compromise data protection, personal information, or network integrity. Cheating, exploiting bugs, distributing malware, or attempting to bypass security measures are strictly prohibited.

6.2 Violations may result in termination of your participation and potential legal action.

7. Allocation of liability

7.1 Definition: "Orchestrator-Originated Content" means content the Orchestrator creates or injects into the network. It does not include content the Orchestrator merely relays, routes, , transcodes or otherwise handles automatically as part of normal software operation.

7.2 If any node, wallet or related infrastructure is targeted by a malicious third party (including hacking, DDoS, malware, exploits or similar) the orchestrators cannot be responsible.

7.3 No party is liable for acts or omissions of any other participant, user, service provider, or third party. An Orchestrator has no liability for any engagement, transaction, or activity in which it did not directly participate.

7.4 An Orchestrator is liable to the Organiser only for the Orchestrator's own intentional unlawful conduct, namely:

- i) intentionally creating or injecting illegal Orchestrator-Originated Content
- ii) intentionally intercepting, altering, or misrouting traffic (including man-in-the-middle attacks)
- iii) intentionally deploying malware or otherwise intentionally compromising the security of the Services.

An Orchestrator is not liable for:

- (i) content or data originating from others that is handled automatically
- (ii) protocol-level or software vulnerabilities not introduced by the Orchestrator
- (iii) outages, exploits, or attacks by third parties
- (iv) any engagements in which the Orchestrator did not participate.

8. Termination of Participation

8.1 The organisers reserve the right to suspend or terminate any orchestrator's participation in the Programme at their sole discretion. Grounds for suspension or termination include breach of these Terms, engagement in prohibited activities, or conduct that undermines the integrity, security, or lawful operation of the Programme.

8.2 Upon termination, the orchestrator shall immediately cease participation and shall not be entitled to receive further incentives. If an orchestrator is terminated due to breach of these Terms, the organisers reserve the right to reclaim any incentives already distributed that remain unearned or were obtained in violation of these Terms and orchestrators agree to return such amounts promptly upon request.

9. Limitation of Liability

To the maximum extent permitted by law, the organisers of the Programme shall not be liable for any indirect, incidental, or consequential damages, including but not limited to loss of profits, data, or business opportunities.

10. Dispute Resolution

10.1 Any dispute arising out of or relating to participation in the Programme shall first be submitted to Kleros, a decentralised dispute resolution protocol.

10.2 The decision of Kleros shall be final and binding within the Programme framework. Where possible, smart contracts connected to the Programme may enforce the outcome automatically.

10.3 If a party refuses to comply with a Kleros decision, or if the dispute concerns matters beyond on-chain enforcement, the dispute shall be finally settled under the Arbitration Rules of the Netherlands Arbitration Institute (NAI). The seat of arbitration shall be Amsterdam, the

Netherlands, the language of arbitration shall be English, and the tribunal shall consist of one arbitrator appointed in accordance with the NAI rules.

10.4 To the extent permitted by law, no party shall pursue claims before national courts, except to enforce or challenge an arbitration award.

11. Governing Law

These Terms shall be governed and interpreted in accordance with the laws of the Netherlands.